

Court No. - 21

Case :- WRIT - C No. - 4450 of 2021

Petitioner :- Hari Singh

Respondent :- U.P. Power Corporation And 3 Others

Counsel for Petitioner :- Girraj Singh

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard learned counsel for the petitioner, learned Standing Counsel for State respondent and Shri Ashutosh Tiwari, Advocate holding brief of Shri Baleshwar Chaturvedi, learned counsel for the respondent nos.1, 3 and 4.

Petitioner is before this Court and his submission is that the bill dated 19.08.2019 is factually incorrect bill and require rectification.

On the matter being taken up today, Shri Ashutosh Tiwari, Advocate, submits that the issue that is being sought to be raised by the petitioner before this Court can be very well remedied under the provisions of paragraph 6.5 of U.P. Electricity Supply Code 2005 wherein all disputes in respect of bills can be remedied.

We have the occasion to peruse the relevant provisions as it exist under U.P. Electricity Code 2005 and therein what we find that paragraph 6.5 of U.P. Electricity Supply Code 2005 provides procedure to remedy the discrepancy regarding disputed bills and arrears.

Consequently, in the facts of the case, as per paragraph 6.5 of U.P. Electricity Supply Code 2005 as the Executive Engineer is the competent authority to redress such a grievance of petitioner, in case petitioner approaches the Competent Authority within ten days from today, the Authority concerned would proceed to pass an appropriate order strictly in accordance with law.

With these observations/directions, writ petition is ***disposed of***.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioner alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 10.2.2021

A. Pandey